

Export certification is issued in accordance with the [Export Control Act 2020](#) (the Act) and importing country requirements.

The Act sets out the overarching legal framework for the regulation of exported goods, including food and agricultural products, from Australia. It enables the Secretary of the Department of Agriculture, Fisheries and Forestry (the Secretary) to make rules that detail the requirements and establish conditions for exporting certain goods from Australia.

The Export Control Rules 2021 (the Rules) are legislative instruments made by the Secretary under section 432 of the Act that set out the operational requirements that must be met to export specific goods from Australia (e.g., meat). These conditions ensure any importing country requirements are satisfied, and that the export conforms with requirements and industry standards and meets Australia's international obligations.

Export Permit	Confirms eligibility of prescribed goods for export and facilitates the exit of these goods from Australia
Government Certificate	A certificate issued by the department to confirm that certain criteria have been met to facilitate clearance of goods at import
Export Control Rules	Means a legislative instrument created under section 432 of the Export Control Act 2020
Importing country requirements	Means a requirement that must be met before products can be exported to that country from Australia as set out by the importing country.
Prescribed Goods	Goods that are prescribed by rules made for the purposes of subsection 28(1) of the Export Control Act 2020
Non-Prescribed Goods	Goods that are not prescribed by Export Control Rules

The [Export Control Act 2020](#) provides the legal authority under which the department certifies the export of prescribed goods and non-prescribed goods. The subordinate legislation listed below provides detailed procedures and information for granting of permits and issuing of certificates:

An export permit is mandatory for all prescribed goods exported from Australia in accordance with the Act. The main function of an export permit is to verify that product is eligible for export. Once obtained, the exporter reports the export permit number to the Australian Border Force in the Export Declaration (EDN).

An exporter of prescribed goods must apply to the Secretary for an export permit. The applicant must provide certain information to the Secretary to satisfy legislative requirements and to verify compliance to importing country requirements.

The Secretary may issue an export permit once satisfied that the conditions and restrictions have been met and that the information given to the Secretary is true and correct.

A charge for a Request for Permit (RFP) or export permit may apply as stipulated in the charging guidelines.

An export permit is valid for 28 days. It is a legal requirement that an export permit is issued prior to export of the goods.

The exporter of the goods must notify the Secretary if the intention to export is abandoned.

An export permit may be revoked if the goods do not comply with the restrictions and conditions.

A government certificate is an official document issued by the department containing details about the product being exported, confirming the product meets importing country requirements. The government certificate is signed by either a veterinary officer or authorised officer depending on importing country requirements.

The role of the certificate is to confirm to the importing country authorities that the described goods have met specified requirements.

An exporter must apply for a government certificate.

In the case of non-prescribed goods, an application can be made for certification under section 69 of the Act.

In the case of prescribed goods, the request for export permit may be considered an application. An export permit must be issued for prescribed goods prior to an export certificate being considered.

The government certificate will only be issued if the Secretary is satisfied that the goods meet the relevant conditions and restrictions of the Export Control Rules, any importing country requirements and any other matters as specified on the certificate.

A government certificate may be cancelled by the Secretary in certain circumstances.

A certificate charge may apply as stipulated in the charging guidelines.

Product must be verified as complying with legislative and importing country requirements prior to a certificate being issued.

Certificates are issued as per known importing country requirements detailed in the [Manual of Importing Country Requirements \(Micor\)](#) or any other relevant notice.

The certificate template will always be as agreed with the importing country or, if there has been no agreement on a template, then as agreed by the department.

Certificates cannot be backdated.

Manual certificates wherever possible should not be handwritten and must not contain any corrections.

Commercial information is not permitted on certificates unless agreed for that product to that country.

Certificates may not be issued if market access sensitivities exist or restrictions are in place due to a disease incident.

The exporter as nominated on the export permit is responsible for the goods.

A replacement certificate is issued where an amendment is made to information on the certificate. A replacement certificate will only be issued where all copies of the original are returned, or in the case of lost certificates a declaration is made. Where the request is made by an importing country authority the certificate is not required to be returned.

An exporter may apply to the Secretary for a replacement certificate. The Secretary will assess the request and may seek additional information before issuing the replacement.

Replacement certificates will only be issued if the Secretary is satisfied that product complies with all requirements. The Secretary may in certain circumstances refuse to issue a replacement certificate.

- Where the exporter requests a replacement for product that has departed Australia, product suitability and integrity must be proven to have been maintained:
 - seals must be intact for containerised product or where a seal is applied
 - temperature records may be required for assessment to confirm product quality has been maintained.
- Where the Importing Country Authority requests a replacement, the department will verify information and eligibility prior to issuing a replacement.
- Replacements will not be issued for product that has been rejected by an overseas importing country authority due to product suitability non-compliance.
- Replacement certificates are not accepted or are limited in some countries.

All replacement certificates will include an endorsement that provides details of the original certificate and a statement that confirms that the certificate is a replacement.

A charge may apply for a replacement certificate that is additional to the per certificate charge.

For further information on certification for

- plant exports, please email PlantExportsNDH@aff.gov.au
- all other commodities, please email foodexportdocumentation@aff.gov.au

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/from-australia/documentation-registration-licensing/export-certification-fact-sheet>